

Assignment 1

Melvin Viado

Cybersecurity, Durham College

LAWW 1201: Law and Ethics in Forensic Investigations

Jerrard Gaertner

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Introduction

This is my video essay presentation for assignment 1 of the law and ethics of forensic investigations. We are tasked with selecting one case from the seven that was provided that includes problems about law, ethics, technology, and society. The case that I chose is the wrongful arrest because of the facial recognition because I feel like it was the best case to consider the legal, ethical, and technological and social implications.

Legal and Regulatory Analysis

Laws or Regulations in Canada

First, we are going to do a legal and regulatory analysis starting with which laws or regulations would be implicated if this event had taken place in Canada. The three most relevant laws would be the Canadian Charter of Rights and Freedoms and the Municipal Freedom of Information and Protection of Privacy Act (MFIPPA).

Sections 7, 8, 9, and 15 apply from the Charter. Section 7 involves the right to life, liberty, and security of the person. The false arrest of the police would violate section 7 by negatively impacting the life and security of the person. Section 8 of the Charter protects individuals from any unjust action by the government that interferes with an individual's reasonable expectation of privacy where Porcha Woodruff, the suspect, or a representative would have to argue that the facial recognition system took the biometric data of her face without consent and that the police using the facial recognition system was unreasonable search. Section 9 prevents arbitrary or random detentions and imprisonments where information provided by the facial recognition system may have been unreliable or racially biased. Lastly, Section 15 guarantees the right to equality and the case involves critics pointing to racial bias and marginalized communities on the social side that resulted in the arrest.

The Privacy Act would apply to municipal police that would have arrested the suspect if the event had taken place in Canada. The privacy act regulates how they collect, use, and disclose personal information including facial images. The privacy act requires that biometric data, such as the used facial images are lawful and consent-based where possible to protect against misuse of the sensitive information.

Laws or Regulations in the US

If this event took place in the US, which is has in Detroit, the fourth amendment and the federal rules of evidence would apply. The fourth amendment is a part of the United States Constitution and where the US constitution outlines the rights of citizens and defines the powers of the federal government. The fourth amendment protects people from unreasonable searches and seizures and requires warrants to be issued. The Federal Rules of Evidence is a United States regulation that governs the admission or exclusion of evidence. The Elliot-Larson Civil Rights Act is also a Michigan state law that prohibits discrimination in public service based on race and color. This case raises equal protection issues where technology has a history of higher false match rates of black individuals.

Similarities and Differences

To compare laws from Canada and the United States that apply to this case, both countries face concerns about racial bias, accuracy, and fairness when using facial recognition systems, specifically involving marginalized communities. They also involve issues of privacy, due process, and appropriate warrants before arrests based solely on facial recognition matches. Lastly, they both concern with admissibility of algorithmic matches as evidence and accountability for errors.

To compare the difference in laws, in the US they have revised policies for police where you cannot arrest solely based on facial recognition matches and require a greater review for warrants involving facial recognition systems. Whereas in Canada, there is no single federal law that specifically addresses facial recognition technology. Privacy laws like the Privacy Act and PIPEDA focuses on consent and data protection for Canadians. Therefore, the US focuses on evolving police procedures while Canada has a broader focus on the regulation and use of technology.

Law Sufficiency

The existing laws in Canada and the United States governing facial recognition systems are insufficient for addressing issues such as the Detroit incident involving Porcha Woodruff because they do not have single, comprehensive federal law regulating facial recognition technology use by police. These laws cover general principles around personal information, consent, and privacy, but do not specifically address key issues from facial recognition systems including false matching, racial bias, and evidence admissibility. Canada also does not have clear standards of the requirements for a warrant to use facial recognition system outputs. Canadian law is too broad and makes it challenging to analyze or describe the precise details when addressing issues relating to policing using facial recognition systems to make reasonable arrests.

Laws on the Ethical or Financial Component?

These laws seem to not deal with either the ethical or financial component of this case. The Canadian and United States laws cannot clearly address the ethical issues raised by police using facial recognition systems and therefore make it hard to financially compensate those who are wrongfully challenged to court. These laws are not fair and just for this case because you must make arguments that are challenging to create as you have no clear laws to prove that this case involved a wrongful arrest. You would have to prove that police solely using facial recognition systems is a breach of privacy, that a wrongful arrest was made, and that their actions were racially biased and targeted to a marginalized community.

Alternative Methods

The police could have supplemented their facial recognition results with more investigation involving collecting alibis, reviewing surveillance, and interviewing witnesses. The police were simply too reliant on the facial recognition technology and did not account for the errors it can make. Police should also be transparent about their use in technology which can provide opportunity for marginalized communities to address standards for fairness. Lastly, an alternative would be to have manual review of the facial recognition results by trained professionals instead of automatically accepting the results without seeing if there were errors or racial bias.

Ethic & Role-Play Perspectives

As the victim

Initially as the victim, I would feel anger and confusion because I would know that the arrest is based on a wrongful accusation, and it would make me especially angry since I would already be facing social challenges. Since I belong in a marginalized community which have experienced many unjust policing and wrongful arrests, my fear and resentment to police and to existing technology would be amplified as further unjust actions by the government could happen. I would also be angry and confused because the arrest was solely based on only the output of the facial recognition system. As the suspect, I would feel dehumanized as an individual because the police were using data from the system just to misidentify the person which renders us to probabilities. Generally, the law enforcement should account for their errors and harm to innocent individuals to maintain accountability and fairness.

I would believe that it is wrong to use an imperfect and biased facial recognition system to arrest someone based on the results of the system. By arresting based on the results of the system, it violates the presumption of innocence and due process, where I, the suspect, am innocent until proven guilty and that I have all legal rights owed to me, because nobody verified the results and that they did not use any other supporting evidence. I would believe that it is right to use technology to assist investigations in a responsible way but not fully replace them. It is right to use the facial recognition technology only when it is supported by contextual evidence and not used as a basis for arrest on its own.

As the corporation (police)

As the police, I would feel frustrated about the facial recognition system producing a false match because I used this tool and I thought it would be reliable in finding the person who did the carjacking, but it turned out to be not a reliable tool. I would also feel defensive because I would believe that I was just doing my job with the information provided to me, and that I would say the resulting data presented to me by the facial recognition system was enough to provide reasonable grounds for a lawful arrest.

As the police, I would believe that using tools such as facial recognition technology to find and capture criminal suspects would be the right thing to do, and that using the results of the system was a good lead to make the arrest and prevent the suspect from further criminal activity such as car jacking. As the police, I would believe that it is wrong to be personally blamed for the failure of the system because the produced results would be out of our control.

The reason I would feel this way as the police department is because police are trained to carry out their duty and given that my police department allowed the use of this tool, I would have seen it as a valid and ethical tool to use to help make the arrest. I also would have felt like I could rely on this tool because officers are urgent to solve cases and any technology to get a lead would be attractive to use. Lastly, I would feel defensive because the system made errors if we were the ones to be attacked for the system's mistake.

As society at large

If I were society, a large part of me would be the black community where I would feel distrust and frustration. The anger and frustration would come from the fact that law enforcement continues to target citizens in the black and marginalized communities and that the police heavily relied on technology with known racially biased issues. Studies show that black faces, especially black women, have a higher rate of false positive which leads to wrongful arrests which show that police make discriminatory outcomes from these false results. The black community also have a higher amount of policing, surveillance, and criminalization which increase the risk of being misidentified by these technologies and promotes systemic racism. This case shows that the police did not follow the rule of due process these facial recognition systems are prone to error which threatens the civil rights of the black community.

So as society, I would believe that it is wrong to against arrest someone solely based on facial recognition technology without supporting evidence given the high rate of misidentification. I would believe that it is right to have higher standards of evidence, to reject ineffective tools for arrest, and to advocate for accountability in policing, and to incorporate community-driven approaches to safety.

As the court

As the court I would feel concerned about the fairness and reliability of the use of the facial recognition system as evidence given that it determines the innocent of the arrested suspect. As the court, I would believe that it is wrong to arrest someone based solely on this mismatch of the system and that more evidence would be required to prosecute the suspect.

As the court, I would believe that it is right to make arrest based on a probable cause from multiple sources, not just one facial recognition match. I would also believe that the suspect has the right of due process and equal protection, especially since the suspect belongs to a marginalized community. Lastly, I would believe that it is right to ensure that the systems are audited and tested for accuracy before being used in criminal investigations and that they meet standards for admissibility as evidence if they are accurate systems.

As the court, I would believe that solely using facial recognition for arrest is wrong and that using technology that is racially biased and prone to errors is wrong. I would also believe that it is wrong to not consider the circumstances that marginalized communities are in where they are overpoliced and wrongfully prosecuted.

The reason why the court would have these feelings is because the duty of the court is to ensure that probably cause is met, to protect against unreasonable searches and seizures, and to protect from unreliable evidence that could wrongfully prosecute the suspect. They would also have these feelings because they would be socially aware of the racial biases and that their community does not trust law enforcement as well as other communities.

Clashing Positions

The suspect and society will clash with the police because the suspect and society may view technology as biased and would likely view her arrest as evidence of systemic racial bias and

technological misuse while the police will believe that technology is only a neutral and efficient tool for identifying suspects that help them solve their crimes quickly. These groups may also clash in relation to the trust in technology where the suspect and society will believe that such technology should not be used anymore while the police will continue believe its reliability to solve criminal cases. Should the police continue to use it for its efficiency? And are the police considering that, because of this event, is the technology no longer reliable?

The court will clash with the police to assign legal responsibility for the wrongful arrest to the police, or to the error-prone system. The court may require the disclosure of the data that the system was trained on, reliability testing, or have a qualified individual to help the court understand the facial recognition system.

Techno-Social Impact

Legal Issues

Firstly, it is a legal challenge to determine the correct warrant standards and what evidence is allowed from the results produced by the system. We also know that the system can make mistakes and be incorrect which leads to wrongful arrests and that determining who or what is accountable is difficult when these errors occur. The use of the technology involving this case may also violate constitutional protection, relating to sections in legal documents that involve equal protection, and especially when racial bias emerges as result of the system's errors. Lastly, since there are insufficient laws that regulate the use of facial recognition by law enforcement, it can be challenging to use existing legal rules to create consequences for such cases.

Ethical Issues

This case shows that there is systemic inequality in the introduced technology as its algorithms misidentify people of color, especially black individuals, and has racial and gender bias issues. Following that, there is privacy being violated because the technology required the use of unauthorized biometric data, taking facial images, without informed consent. Furthermore, the technology led the police to decide to arrest based on an algorithm that used probability to create a match rather than conducting a comprehensive investigation. Lastly, the technology can socially harm marginalized communities because they can keep using false matches to make false arrests which undermines their civil freedom.

To summarize the issues that the facial recognition technology brings, it can aid in solving criminal cases, but it creates legal and ethical issues because it creates opportunities for misidentification, bias, privacy breaches, and general injustice. This is especially true for vulnerable and marginalized populations, and law enforcement must be careful and regulate the use of this technology to protect the civil rights of the community.

Human and Organizational Consequences

Woodruff was wrongly arrested, police handcuffed her at her own home while pregnant. She was with her young daughters, ages 6 and 12, where they had to witness the distressing scene. Woodruff was held in jail for 10-11 hours and suffered significant physical and emotional stress including contractions that required hospital care due to her being pregnant. The fiancé of Woodruff rushed her to the hospital immediately after she was released because she experienced severe pain. The case caused trauma for her and her family and stress for her children who were scared by the presence of the police. Woodruff also suffered postpartum depression from this event. This is the result of a wrongful arrest, harms of racial bias in facial recognition systems, and the distrust of law enforcement in public institutions. Woodruff is one of six black individuals in Detroit that was falsely accused through this technology, and it shows that the black community experience unjust arrests and emotional trauma.

The organizational consequences for the police department would be that they can no longer rely on the technology alone to make arrests where they must provide supporting evidence if they do use such technology. This case would also raise issues around probable cause, admissibility of algorithmic evidence, and accountability for errors by police relying on technology that can make errors. The question stands whether these issues will be addressed and that civil rights will be protected.

Self-Reflection

Values

The values I hold that concern with this case would be rights to privacy, fairness, and equality. I believe that the use of facial recognition technology consists of the collection of biometric data without consent. Fairness and equality were not met because Woodruff was a victim to racial bias, and she was wrongfully arrested because she was a person of colour. I also believe that fairness was not met because the police simply did not have sufficient evidence to make the arrest and imprisonment. Lastly, I value humanity and wrongful arresting and imprisoning a pregnant woman where her family had to witness the event, then experience a physically and mentally painful experience is not very humane. Therefore, I would demand a great amount of compensation for the event and even penalize the officers that made the arrest.

Resolve as the Regulator

As the regulator I would require that police officers go through comprehensive training on the limitations and racial biases of facial recognition technology so that the officers are educated on responsible use on facial recognition technology and to not only use it to make arrests. I would also require that officers are transparent and document any use of facial recognition, and additionally, that cases where facial recognition were used to be reviewed and audited. Finally, I would establish who is accountable when officers use technology where policies will prevent the misuse of technology.

Heavily Weighted Principles

Fairness weights heavily in this case because there is disproportion because black individuals like Woodruff are being misidentified which proves that there is not equal treatment in this case. Justice comes after that because they did not respect due process rights as they did not supplement the system match results with other evidence. Dignity was also impacted because Woodruff and her family experienced trauma and had to endure a wrongful arrest, especially while pregnant. A great amount of emotional distress to her and her family will affect her for a long period of time. Lastly, accountability weight quite heavy as law enforcement and the legal system should have been responsible for their actions and they should have known not to fully rely on a faulty system.

As a future policymaker in an AI-Driven Society

As a future policy maker, I would make sure that if AI is used in facial recognition technology, that it will respect privacy, fairness, and due process. I would want to make sure that sensitive areas like law enforcement ensures that personal information is respected, that reasonable grounds are met when performing arrests, and that fundamental rights are applied to all individuals. Meaning, I would not tolerate bias, wrongful harm, and especially discrimination. I will also ensure that the use of AI requires transparency, independent audits, and clear accountability where how they use it in their systems is explained and the process is monitored. AI is a tool that could be helpful in determining human decisions with efficiency, but there are also risks using AI and it requires testing and monitoring for errors to reduce any harm from making wrong decisions.

References